

Kiran Patel vs Rakesh Patel on 23 October, 2018

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The High Court Of Madhya Pradesh

FA-326-2017

(KIRAN PATEL Vs RAKESH PATEL)

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Jabalpur, Dated : 23-10-2018

Shri Dinesh Prasad Patel, learned counsel for the appellant

Shri J.L. Mishra, learned counsel for the respondent.

As per report of First Additional District Judge, Amarpatan, District Satna, dated 12.9.2018, the second marriage of the respondent was solemnized on 14.4.2017 i.e. much prior to the date of filing of this appeal.

Considering the aforesaid, at this stage, no proceedings can be drawn against the respondent for disobedience of stay order passed on 27.4.2017. The question whether by solemnizing second marriage, the respondent has violated the provision of Section 15 of Hindu Marriage Act, will be considered at the time of final hearing of this appeal.

Let the matter be placed before the concerned Registrar to explore the possibility of settlement by paying permanent alimony to the appellant.

List the matter immediately after receipt of mediation report.

(P.K. JAISWAL)

JUDGE

(B. K.

A.Praj.